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|     |                                               | <p><b><u>Seventh Cause of Action for Infliction of Emotional Distress</u></b></p> <p>The allegations Moving Defendants intentionally hindered repayment of the loan with the intent to oust Plaintiff from his home in order to obtain the Subject Property’s significant equity for themselves appear sufficient to plead outrageous conduct by Moving Defendants. (See Compl., ¶¶ 22, 30, 53, 93; <i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1050-51.)</p> <p>The demurrer to the seventh cause of action is <b>OVERRULED</b>.</p> <p><b><u>Eighth Cause of Action for Quiet Title</u></b></p> <p>Moving Defendants argue “[t]here simply is no legitimate dispute about title” because Plaintiff lost ownership of the Subject Property following a routine foreclosure sale. However, the entire basis for Plaintiff’s Complaint is that the foreclosure sale was improper.</p> <p>The demurrer to the eighth cause of action is <b>OVERRULED</b>.</p> <p><b><u>Ninth Cause of Action for Rescission</u></b></p> <p>“Rescission is <i>not</i> a cause of action; it is a remedy.” (<i>Nakash v. Superior Court</i> (1987) 196 Cal.App.3d 59, 70, emphasis in original.) The demurrer to the ninth cause of action is <b>SUSTAINED with 20 days leave to amend</b>.</p> <p>Moving Defendants shall give notice.</p> |
| 205 | <i>Hilbert Group, LLC vs. Nano Banc, Inc.</i> | Court withholds a tentative ruling.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 206 | <i>James vs. Paired Up LLC</i>                | The court withholds a tentative ruling. Parties should come to oral argument ready to discuss the                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |